

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	30-2022-01242308 Velasco vs. Warmel Management Company	The hearing on plaintiffs' motion for approval is CONTINUED to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all provisions of the settlement modified by amendment. The court has reviewed and considered the papers, including the supplemental papers filed in support of plaintiffs' motion for approval of a \$1,880,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should insert the end date for the operative PAGA Period. ¶ 1.22; ROA 127 ¶ 17. 2. Plaintiffs should state their anticipated total compensation (including for any individual claims). 3. Plaintiffs should submit copies of any individual settlement agreements entered with defendant or any related entities and/or individuals. Notably, plaintiff Pereira states she entered a "separate settlement," which, unlike plaintiff Velasco's \$35,000 individual settlement, is not disclosed by counsel. <i>Id.</i> ¶ 8. 4. The "Released Parties" provision is overbroad. ¶ 1.31. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including "direct and/or indirect," "agents, representatives, attorneys, insurers, partners, investors, shareholders, administrators," "subsidiaries, affiliates, divisions, predecessors, successors, assigns, managing agents, related companies and joint venturers."

		5. Defendant should state in declaration(s) filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration(s) shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. Plaintiffs' counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiffs' counsel should reduce the attorneys' fees or address in the supplemental filings whether any such unique circumstances exist here. 7. Plaintiffs' counsel Crosner Legal must support its \$8,367.41 cost request with a dated, itemized list of costs incurred, and support the mediation fee with an invoice. ROA 125 ¶ 31. 8. Plaintiffs' counsel Moon Law must support its \$21,004.98 cost request for mediation and expert fees with invoices. ROA 127 Ex. 4. <u>As to the notice:</u> 9. The notice letter should be revised consistent with the above. 10. Include both actions in title and change "action" to "actions" in both places in paragraph 1. At 1. 11. Include the PAGA Period end date. §§ 1, 4, 5. 12. Include the financial terms of the settlement. § 1 ¶ 2. 13. Insert "approval" between "settlement" and "hearing." § 1. 14. Include the court's department number. § 1. 15. The case description is inaccurate and needs to be revised. It should be brief, but reflect both cases. § 2. 16. The notice throughout should refer to plaintiffs, not plaintiff.
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		17. Delete “fully and completely.” § 2 ¶ 2. 18. Identify co-counsel for plaintiffs. § 3. 19. Same issue as above regarding “Released Parties.” § 4 ¶ 1 n.1. 20. Replace [DATE]” with “the date Defendant fully funds the entire Gross Settlement Amount,” and include an expected date. § 4 ¶ 1. 21. The following language should be deleted in § 4 ¶ 2: “Plaintiff, the Aggrieved Employees and the LWDA may discover facts in addition to those they now know or believe to be true with respect to the subject matter of the Released Claims, but upon the Court’s approval of the Settlement, Plaintiff, the LWDA and the Aggrieved Employees shall be deemed to have, and by operation of the Court’s Order approving the Settlement shall have, fully, finally and forever settled and released any and all of the Released Claims, without regard to subsequent discovery or existence of such different or additional facts. It is the intent of the Parties that the Settlement approval order entered by the Court shall have full res judicata effect and be final and binding upon the LWDA and PAGA Aggrieved Employees regarding the Released Claims. In light of the binding nature of a PAGA judgment on non-party employees pursuant to <i>Arias v. Sup. Ct.</i>, 46 Cal. 4th 969 (2009) and <i>Cardenas v. McLane Foodservice, Inc.</i>, 796 F.Supp.2d 1246 (2011),”. 22. Replace “those” with “penalties.” § 4 ¶ 3. 23. The financial terms are inaccurate. § 5 ¶ 1. Include the not to exceed amounts for the administrator and for litigation costs. Add that the fee award is “not to exceed.” 24. Identify the tax form (1099) aggrieved employees will receive. § 5 ¶ 4. 25. The settlement (¶ 7.3) provides that aggrieved employees may challenge the number of pay periods. This process should be explained in the notice. § 5 ¶ 4. 26. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the
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URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. If no website is to be maintained, the notice must inform aggrieved employees how they will be notified when judgment is entered and how they may receive a copy.

§ 6

As to the proposed order and judgment:

27. The proposed order and judgment should be revised consistent with the above.
28. The document title and footer should reflect "[Proposed] Order Granting PAGA Settlement Approval and Judgment."
29. Include both case captions and both case numbers.
30. Include both actions in the preamble. At 1.
31. Identify and attach the settlement and any amendments as exhibits.
32. If the notice is to be provided in any language other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit.
33. Include the GSA and placeholders for the amounts of disbursements.
34. Plaintiffs' individual releases and the release by PAGA Counsel should be removed. ¶ 7(a), (c).
35. The same issues above apply to the "Released Parties." ¶ 7(d).
36. Remove paragraph 11.
37. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees.
38. Include a paragraph with a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has

		expired. The court holds final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment must state that counsel must submit a final administrator's report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. If all funds are not fully and finally disbursed, including uncashed checks, plaintiffs must request a continuance. 39. Add a final paragraph stating: "The court orders the parties and the Settlement Administrator to administer the settlement in accordance with the terms of the Settlement Agreement." Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
11	30-2023-01351853 Alonzo vs. Reimagine Network	The hearing on plaintiffs' motion for approval is CONTINUED to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement must be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$215,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Counsel states that "on December 18, 2025, Plaintiffs filed a dismissal of Plaintiffs' class claims without prejudice and their individual claims with prejudice, leaving only the PAGA claims remaining in the FAC." ROA 72 ¶ 5. The ROA indicates no such filing. When will the request for dismissal of the class claims and